

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 8/25/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0005329

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: KIMBERLEY MILLER
KAISERMAN

vs.

DEFENDANT: CLUTCH STAFFING LLC,
A PENNSYLVANIA LIMITED LIABILITY
COMPANY. ET AL.

NATURE OF PROCEEDINGS: MOTION – OTHER: FINAL APPROVAL OF
SETTLEMENT

RULING

Appearances required.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for August, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyailnzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/25/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0006430

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PETITIONER: DEBORAH STEIN

vs.

DEFENDANT: HEADLANDS II OWNERS
ASSOCIATION ET AL.

NATURE OF PROCEEDINGS: MOTION – COMPEL

RULING

Defendant Joseph Aiello’s (“Defendant”) Motion to Compel Arbitration and Stay the pending litigation pursuant to California Code of Civil Procedure section 1281.2 is **DENIED**.

Background

This action arises out of alleged water intrusion into plaintiff Deborah Stein's (“Plaintiff”) condominium at 242 Headlands Court, Sausalito, California. Plaintiff alleges she incurred damages because of this water intrusion and the subsequent repair attempts, including mold contamination, property damage, and loss of use.

Plaintiff filed her original complaint on May 29, 2025. The Second Amended Complaint (“SAC”), filed on October 15, 2025, is the operative pleading. The SAC names Headlands II Homeowners Association, Schmitt Heating Co., Inc., Enviro-Star Corporation, Everest General Contractor LLC, and Grayson Property Management LLC, along with Doe Defendants 1 through 25 as defendants. It was not until April 25, 2026, that Defendant Aiello was added through a Doe Amendment (as Doe 6) as the individual believed to be the owner of the condominium above Plaintiff's own and from which Plaintiff alleges the water intrusion, at least in part, originated.

Defendant Aiello filed the present Motion to Compel Arbitration on July 13, 2026, although two other Motions to Compel were previously filed and withdrawn prior to their hearing dates.